Charlotte-Mecklenburg Schools Generative AI Guidance: Data and Student Privacy Passages

Excerpted verbatim from *Generative AI Guidance 2025-26 (Charlotte-Mecklenburg Schools, North Carolina; version 01, August 2025)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text. The Data Privacy & Security section (pages 9–11) is reproduced in full. The sentence barring confidential or sensitive information from AI systems appears on both page 11 and page 18; it is quoted in both places because each sits within its own section.

Overview: Scope (excerpt)

Source: page 6

It is designed to help students, staff, and vendors align AI use with district policies on data privacy, digital citizenship, and academic integrity.

This guidance applies to academic, instructional, administrative, and operational uses of AI. All AI use must align with the CMS AI Vision and Guiding Principles, Board policies, and applicable federal, state, and local privacy laws.

AI Guiding Principles: Operational Excellence (excerpt)

Source: page 8

We will continue to adhere to cybersecurity standards and federal, state, and district policies for protecting stakeholder data.

Data Privacy & Security

Source: pages 9–11

Overview

Charlotte-Mecklenburg Schools is committed to safeguarding the privacy and security of student and staff data in alignment with federal, state, and local laws, as well as CMS Board policies. This includes compliance with the Family Educational Rights and Privacy Act (FERPA), a federal law that governs access to and disclosure of student education records. As we expand the use of digital tools and generative AI across instructional and operational settings, protecting Personally Identifiable Information (PII) becomes even more critical.

Data privacy is a legal requirement and a foundation of public trust. All CMS employees must understand what qualifies as direct and indirect PII, how it should be handled, and what practices are prohibited under our data privacy policies. Improper use or disclosure of this information can lead to disciplinary action.

Personally Identifiable Information (PII)

Personally identifiable information (PII) is any information that permits the identity of an individual to be directly or indirectly inferred, including any information that is linked or linkable to that individual. PII includes direct identifiers like a person’s name or ID number and indirect identifiers like date of birth. PII also includes any pieces of information that could be combined to identify an individual. For example, even if a file does not include student names or ID numbers, there may still be a way to identify an individual student through a combination of other data fields like school, grade, sex, and race/ethnicity.

Examples of Direct Identifiers (Linked PII)

- Name: First, middle, and/or last name
- Phone Number: Contact numbers, including mobile and home
- Email Address: Personal or school/work email addresses
- Home Address: Physical address where the student or staff member resides
- ID Number: Unique identification number for the student or staff member
- Social Security Number (SSN)
- Parent/Guardian Information: Names and contact details of parents or guardians
- Driver's License Number: The unique number assigned by the state's DMV
- Financial Information: Bank account numbers or credit card information
- Biometric Data: Such as fingerprints or facial scans

Examples of Indirect Identifiers (Inferred PII)

- Date of Birth: Birthdate
- Other School-Related Information: Grades, test scores, courses, attendance, discipline records, etc.
- Health Information: Medical records or health insurance details
- Citizenship or Immigration Status: Information regarding an individual's legal status in a country
- Ethnic and Religious Information: Data that reveals an individual's ethnic background or religious beliefs

Student Data Privacy & FERPA

FERPA gives parents and eligible students (age 18 or attending a postsecondary institution) the right to inspect and review their student's education records. Parents also have the right to request an amendment to their student's education records if they believe there to be inaccurate or misleading information or a violation of privacy.

Education records can only be disclosed with prior written consent from the parent or in the case of specific FERPA exceptions. These exceptions include access for "school officials" with a legitimate educational interest, for a new school to receive records when the student transfers, and for designated "directory information" to be shared if the parent has not opted out of such disclosure. Additional information is available in A Parent Guide to the Family Educational Rights and Privacy Act (FERPA) from the United States Department of Education.

Violation of FERPA may result in disciplinary action and can lead to loss of federal funding for the district.

To support compliance:

- All staff must follow CMS data privacy policies and complete annual training.
- Any suspected breach of student or staff data must be reported immediately to the district's cybersecurity team.

Open-Source vs. Closed-Source AI Systems

As we integrate AI tools into our workflows, it is essential to understand the distinction between open-source and closed-source GenAI systems. This understanding helps ensure appropriate data handling, aligns with our data privacy policies, and supports safe and responsible use.

Definitions

Open-Source Generative AI Systems (Not Secure)

These are AI tools that operate on publicly accessible platforms or models, often provided by third-party vendors. Example: ChatGPT (free/public version), Claude (free/public version), and other web-based tools where data entered may be used to train future models. Data entered is typically stored and may be used by the provider unless explicitly stated otherwise.

Closed-Source Generative AI Systems (Secure)

These systems operate within a controlled, private environment. Example: Microsoft Copilot with Microsoft 365. Data is not used to train models and remains protected within the organization's secure environment.

Data Usage Guidelines

AI Users shall not input any confidential or sensitive information, including student data, into AI Systems unless the system has been specifically approved for that purpose and the necessary data privacy and security measures are in place. Examples include: typing it into a prompt, uploading a file, or copying and pasting content that includes identifiable details.

Key Considerations

- Never put personally identifiable or confidential data into AI systems.
- Ensure staff are aware of whether the AI tool they are using is open or closed.

Guidance for Secure Use of Open AI Systems

- Use general prompts: Ask AI for suggestions or templates based on general scenarios rather than individual cases.
- Ask for review: When in doubt, consult the CMS Cybersecurity Team before entering data into any AI tool.

Professional Learning: Staff Training Tiers (excerpt)

Source: page 12

Tier 1: Snorkeling - Learn the Basics

All staff will complete a self-paced online course focused on foundational AI concepts. Topics include what AI is, how it works, and key considerations such as privacy, safety, and bias.

Digital Citizenship & AI Literacy (excerpt)

Source: pages 13–14

Importance (page 13)

- AI literacy encourages critical thinking, informed decision-making, and protection of personal and intellectual property

K-5 Approach (page 13)

These lessons focus on foundational digital citizenship concepts such as internet safety, privacy, digital footprints, respectful online behavior, and an age-appropriate introduction to artificial intelligence.

6-12 Approach (page 13)

AI literacy components cover generative AI, ethics, and data privacy.

Family & Community Resources (page 14)

Parents and guardians have opportunities to participate in webinars addressing online safety, privacy, and responsible use of AI tools.

AI Use: Staff Use (excerpt)

Source: page 15

Staff must complete the AI Literacy & Data Privacy asynchronous training course prior to using CMS-approved GenAI tools. This course provides a foundation for responsible and informed use. The training includes the following:

- CMS Data Privacy Policies
- Personally Identifiable Information (PII)
- Expectations for safe AI use and a review of approved CMS tools and protections

Monitoring Student Work in Progress (excerpt)

Source: page 18

Instead of evaluating only the final product, use tools that allow you to observe how the student is creating their work.

- **Process Feedback for Google Docs** - This Chrome extension tracks writing behavior in Docs and provides visual reports of the writing flow, including when students typed, paused, or pasted.

Approved Generative AI Tools

Source: page 18

Approved GenAI tools can be found in the Digital Resource Library. Each tool listed has gone through the district's Vendor Approval Process. Inclusion of a Generative AI tool in the Digital Resource Library indicates that it meets the district’s standards for data privacy, security, and confidentiality in accordance with applicable state and federal laws. AI Users shall not input any confidential or sensitive information, including student data, into AI Systems unless the system has been specifically approved for that purpose and the necessary data privacy and security measures are in place.

Glossary: Data Privacy and Ethical Use

Source: page 19

Data Privacy

Protecting the personal information of students and staff by ensuring AI tools meet CMS data protection and security standards.

Ethical Use

The responsible and fair use of AI that respects student privacy, promotes equity, upholds academic integrity, and complies with CMS policies.

Resources: Board Policies and Regulations (excerpt)

Source: page 21

- Policy S-REC Student Records